

Reseller and Channel Partner Agreement

Full Text Demonstration Agreement

Party A	Siemens Industry Software Inc.
Party B	Metroline Digital Solutions LLC
Effective Date	18 June 2026
Governing Law	laws of New York
Venue	state and federal courts located in New York County, New York
Primary Subject	authorized resale and implementation support for industrial software subscriptions
Risk Focus	territory limits, anti-bribery controls, discount leakage, customer ownership, and termination transition

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Article 1. Definitions and Interpretation

Commercial purpose. The parties enter this Article to allocate responsibility for authorized resale and implementation support for industrial software subscriptions. The obligations below are intended to be operationally testable and not merely aspirational. Each party shall maintain records sufficient to show compliance, and neither party may treat silence in an order form, statement of work, or schedule as permission to reduce the protections stated in this Agreement.

Core obligations. Metroline Digital Solutions LLC shall provide, manage, and document qualified opportunities, reseller quotes, customer onboarding coordination, sales reports, and compliance certifications. Siemens Industry Software Inc. shall provide timely decisions, access to reasonably necessary stakeholders, and accurate instructions. Where a dependency is not satisfied, the affected party shall give written notice identifying the dependency, the consequence for timing or cost, and the mitigation steps available without expanding the original scope.

Control language. Any ambiguity in this Article shall be resolved in favor of preserving territory limits, anti-bribery controls, discount leakage, customer ownership, and termination transition. A waiver must be express, written, and signed by an authorized representative. A course of dealing, delayed objection, acceptance of partial performance, or payment of an invoice does not waive future enforcement or modify the standard of care.

- a. The parties shall maintain a decision log for matters that affect territory limits, anti-bribery controls, discount leakage, customer ownership, and termination transition. The log must identify the requester, approver, date, evidence reviewed, residual risk, and any follow-up obligation.
- b. Records involving customer lead data, discount approvals, deal-registration records, end-user information, and channel performance metrics must be segregated from general project material, retained only for the approved retention period, and made available for audit where the Agreement grants audit rights.
- c. Personnel performing material obligations must be qualified for the role assigned. Replacement personnel must receive transition briefings and may not reduce continuity for critical services, milestones, or regulated deliverables.
- d. Each party shall notify the other promptly after discovering facts that could reasonably affect performance, security, compliance, financial exposure, or the enforceability of this Agreement.

Escalation and remedy. If a dispute arises under this Article, the parties shall first escalate to project leads, then to legal and commercial executives. The parties shall continue undisputed performance while the dispute is pending. Equitable relief remains available for confidentiality, data protection, intellectual property, security, and non-use obligations.

Article 2. Scope of Work and Ordering Mechanics

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Article 9. Warranties, Indemnities, Liability, and Insurance

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Signature Blocks

Siemens Industry Software Inc.

Metroline Digital Solutions LLC

By: _____

By: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____